

MOCK CONTRACT - FOR UPLOAD PIPELINE TESTING ONLY

Agreement No.: BA-2025-0002

Contract ID: CTR-002

Supplier: Pilbara Battery Minerals (SUP-AUS-01)

Material: Lithium Carbonate (MAT-LI-CARB)

Term: 2025-07-27 through 2027-08-01

LITHIUM CARBONATE SUPPLY AGREEMENT (ALTERNATIVE SOURCE)

This agreement is entered into between LG Energy Solution, Ltd. ("Buyer") and Pilbara Battery Minerals ("Seller").

Article 1

DEFINITIONS

- 1.01 "Material" means Seller's lithium carbonate meeting the specifications set out in Schedule A.
- 1.02 "Business Day" means a day other than Saturday, Sunday or a day on which banks are closed in Korea or Australia.
- 1.03 "Base Volume Commitment" has the meaning in Section 2.01.
- 1.04 "Force Majeure Event" has the meaning in Section 5.01.

Article 2

SUPPLY COMMITMENT

- 2.01 Seller shall supply a Base Volume Commitment of 7,200 MT per contract year, representing a 30 percent supply share.
- 2.02 Buyer shall issue purchase orders no later than 45 days prior to the requested delivery date.
- 2.03 This agreement is designated ALTERNATIVE in Buyer's sourcing plan and may be scaled up to 60 percent share on 60 days written notice if the primary source is disrupted.

Article 3

PRICE AND PAYMENT

- 3.01 The base unit price is USD 31.06 per kilogram, CIF Busan, INCOTERMS 2020.
- 3.02 Prices are re-set quarterly against the Fastmarkets lithium carbonate CIF Asia index.
- 3.03 Payment terms are net 30 days from receipt of shipping documents.

Article 4

QUALITY AND CERTIFICATION

- 4.01 Material shall meet a minimum purity of 99.5 percent.
- 4.02 Seller shall maintain ISO 9001 and ISO 14001 certification throughout the Term.
- 4.03 Buyer may reject any lot failing incoming inspection within 14 days of receipt; Seller shall replace it within 30 days at no charge.

Article 5

FORCE MAJEURE

- 5.01 "Force Majeure Event" means any event beyond the reasonable control of a party, including natural disaster, war, strike, government export restriction, port closure or grid failure.
- 5.02 The affected party shall give written notice within 5 Business Days.
- 5.03 If a Force Majeure Event continues for more than 90 consecutive days, either party may terminate this agreement.

Article 6

GOVERNING LAW

- 6.01 This agreement is governed by the laws of the Republic of Korea.
- 6.02 Disputes shall be finally settled by arbitration in Seoul under the KCAB International Arbitration Rules.